Crowdmark

Privacy terms and statements | Source archive

Retrieved 10 October 2026

Policy and supporting documents captured

Public documents captured from the competitor website and its linked legal pages. Vendor statements are preserved as published, without independent certification.

About these copies

Web pages are preserved as searchable text snapshots, with their headings and paragraph order retained. Navigation and non-content page elements may be omitted. These are copies of vendor statements, not a GRADIAS assessment of compliance. Source links and any original downloadable files are listed below. Content is retained in its original language.

Sources

01. Privacy Policy

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Competitor website

01 | Privacy Policy

https://www.crowdmark.com/privacy/

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← Legal

Contents

Privacy Policy

Crowdmark is committed to maintaining the integrity and privacy of its users, including you (“you”). This Privacy Policy explains how Crowdmark collects, uses, shares, retains and protects your personal information that may identify you, including in connection with your use Crowdmark’s website at crowdmark.com (the “Website”).

Using the Website, you may upload, submit and post information (including forms of exams, tests, essays, lab reports, and other student work (“assessments”), competed (in whole or in part) assessments, and grades, marks and scores on or in connection with partially or fully completed assessments), text, graphics, photos or other materials to the Website, directly or through another Website user (which Crowdmark calls “Content”).

Crowdmark collects, uses and discloses your personal information in order to develop and provide you and other Crowdmark users with the services you request, improve your online experience, communicate with you about Crowdmark’s services, and contact you about Crowdmark promotions. At its most basic level, Crowdmark wants to create lifelong accounts that store every assessment ever written by every student, teacher, instructor, marker, grader that has an account with Crowdmark. Crowdmark only collects, uses, discloses and stores your personal information as described in this privacy policy (the “Privacy Policy”).

Your Acceptance of Privacy Policy

By agreeing to the terms of Service for the Website, or by using the Website, you signify your acceptance of this Privacy Policy.

If you do not agree to the terms of this Privacy Policy, please do not use the Website. Your continued use of the Website following the posting of changes to this Privacy Policy will mean that you accept those changes.

You cannot open an account if you are under the age of 13 and you live in the United States. If you are under 13 year of age and you live in the United States, please do not attempt to register for Crowdmark or send any information to Crowdmark. If Crowdmark learns that information from a person under the age of 13 living in the United States has been submitted to Crowdmark or uploaded to the Website, Crowdmark will delete the information as soon as possible.

Personal Information Crowdmark Collects

Personal information you provide

Crowdmark collects your personal information through the Website when you choose to provide such information as discussed below. When you choose to share it, Crowdmark collects:

your name and e-mail address when you sign-up for a Crowdmark account;

information, such as your name, that can be used to identify you every time you upload, post or submit Content to the Website;

your name and e-mail address when you contact Crowdmark with any questions, comments, requests or feedback;

your credit card information and billing address when you purchase certain of Crowdmark’s services with your credit card where it is necessary to complete the sales transaction on a one-time or re-occurring basis, as the case may be; and

your name, which appears on the first page of any of your Content you upload, submit or post to the Website including on your competed assessments, and associated with your Crowdmark account.

Personal information Crowdmark obtains through your use of the Website

Each time you visit the Website, Crowdmark may collect information, including some of your personal information, through your IP address, and by using cookies and web beacons, as described below.

An Internet Protocol (“IP”) address is a number that automatically identifies the computer/machine you have used to access the Internet. Crowdmark uses your IP address to send you the web pages that you want to visit, and it may disclose the server owned by your Internet Service Provider. Crowdmark may use IP addresses to conduct Website analyses and performance reviews and to administer the Website.

A “cookie” is a piece of information that a website transfers to a user’s computer for purposes of storing information about a user’s preferences. Cookies in and of themselves do not personally identify users, although they do identify a user’s computer and can qualify as personal information. Crowdmark uses cookies to provide useful features when you visit the Website. You can set your browser to refuse cookies, but some portions of the Website may not work properly if you refuse cookies .

A “web beacon” is an electronic image (also referred to as an “action tag,” “single-pixel,” or “clear GIF”) that is commonly used to track the traffic patterns of users from one web page to another in order to maximize web traffic flow and to otherwise analyze the effectiveness of websites. Some web beacons may be unusable if you elect to reject their associated cookies. Some of the Website’s web pages may use web beacons in conjunction with cookies to compile aggregate statistics about your use of the Website.

Personal information and content Crowdmark obtains from third parties

Crowdmark may attempt to collect information you created, before or after you had a Crowdmark account, from third parties, such as schools, teachers and instructors, including forms of assessments, competed assessments, and grades and scores on or in connection with completed assessments, which Crowdmark calls “Indirect Content”.

If Crowdmark collects any of your Indirect Content it will enter into a contract with that third party which requires the third party to ensure, and provide assurances to Crowdmark, that it has your consent to disclose that Indirect Content, including any of your personal information therein, to Crowdmark. If any of your personal information appears in or on your Indirect Content, it will be used, disclosed and stored in accordance with this Privacy Policy, and it will be connected and linked with you, your account and your personal information you voluntarily provided to Crowdmark.

If you want to know if Crowdmark has obtained any of your Indirect Content, or if you want Crowdmark to stop using personal information collected from your Indirect Content, or if you want Crowdmark to delete this personal information, you can contact Crowdmark anytime as described in this Privacy Policy.

How Crowdmark Uses Your Personal Information

Personal information you provide

Crowdmark uses the personal information you voluntarily provide in order to address your requests for information about Crowdmark’s products or services, to maintain your account and your profile, and to offer and deliver a variety of products and services to certain users of the Website and to third parties as set out in this Privacy Policy, as described below. Crowdmark will not use your personal information other than as specified in this Privacy Policy.

When you contact Crowdmark with questions, comments, requests or feedback, Crowdmark will use your name and e-mail address to communicate with you and respond to you.

When you purchase certain of Crowdmark’s services with your credit card, Crowdmark uses your name, credit card information and billing address to process and complete the sales transaction on a one-time or re-occurring basis, as the case may be, but will not retain this credit card and billing information longer than is necessary to process or complete the transaction. Crowdmark may also use your personal information to contact you to confirm your purchase and provide you access to the services purchased.

If you have created an account, Crowdmark will use your name and e-mail address to identify you and maintain your account in order to provide you with the services you request. To do so, Crowdmark uses your name and e-mail address to link to all of your Content and all Content provided to Crowdmark through your account, all Content from third parties on or in connection with your Content, and any of your Indirect Content. Crowdmark retains all of this information (including your personal information) for as long as you have a Crowdmark account. The following examples explain

how Crowdmark will use your personal information address to identify, maintain your account and connect you with Content.

Assessment Creators – If you are a teacher, instructor, or facilitator, Crowdmark may link your assessments (in other words, your Content) with your name and account.

Assessment Writers – If you are a student, Crowdmark may connect your completed assessment (in other words, your Content) with the grade and marks on your completed assessment provided by a grader (in other words, third party Content) and with the assessment questions provided by a teacher (also third party Content) and link all of this information to your name, e-mail address and account.

Assessment Graders – If you are a teacher, instructor, marker, grader or facilitator Crowdmark may connect your grades, marks and comments on partially of fully completed assessments (in other words, your Content) with your name, e-mail address and account.

If you have created an account, Crowdmark may also use your name and e-mail address to communicate with you by e-mail about Crowdmark's Services, certain changes to Crowdmark's Services, certain changes to the Website terms of use, your use of Crowdmark's services, or Crowdmark's promotional or marketing efforts. If you would like to stop receiving promotional or marketing e-mails from Crowdmark, please see the section below entitled, "Your Decisions about your Personal Information".

If you have created an account and you live in the United States, Crowdmark will use your date of birth to verify that you are at least 13 years of age.

In some cases, Crowdmark may remove personal identifiers, such as your name, from your personal information and Content and maintain the information in non-personalized, aggregate form that may later be combined with other information to generate anonymous, aggregated statistical information.

Personal information Crowdmark collects automatically (cookies and web beacons)

Crowdmark uses cookies and web beacons to improve your online experience when you visit the Website by:

recognizing you when you return to the Website; and

studying how you navigate through the Website and which products you request in site searches so that Crowdmark can improve the design, content and function of the Website and Crowdmark's services.

Crowdmark may hire third-party service providers to assist in the collection and analysis of cookies and web beacons, but none of your personal information is disclosed to these third party service providers.

How Crowdmark Shares Your Personal Information

Crowdmark will not sell, rent, license, or trade your personal information with third parties for their own direct promotional or marketing use unless Crowdmark receives your express consent to do so. Unless you provide consent to do so, Crowdmark will not share your personal information other than as specified in this Privacy Policy.

Disclosing personal information to other Crowdmark users

In order to offer its services Crowdmark may disclose your personal information to other users of Crowdmark's services only as is necessary for assessment evaluation and grading team management, as described below.

Assessment Creators – If you are a teacher, instructor, or facilitator, Crowdmark may disclose your name to students, markers, graders and proctors registered with Crowdmark to allow them to connect your Content with your name.

Assessment Writers – If you are a student, Crowdmark may disclose your name to schools, teachers, instructors, facilitators, markers, graders and proctors registered with Crowdmark to allow them to connect grades and marks on Content to your name.

Assessment Graders – If you are a teacher, instructor, marker, grader or facilitator, Crowdmark may disclose your name to other teachers, instructors and facilitators, and to schools, and students registered with Crowdmark to allow them to connect your Content to your name.

Crowdmark will not disclose your name to third parties not registered with Crowdmark. Crowdmark will only disclose your name to third parties registered with Crowdmark as described above. Any organizations and individuals receiving

your personal information from Crowdmark can only use it to the same extent that Crowdmark can use it under this Privacy Policy, and do not have any right to further share or disclose that personal information.

Sharing personal information with third parties assisting Crowdmark

Crowdmark may share your personal information with trusted companies that work with, or on behalf of, Crowdmark to process information, including payment processing companies and information processing companies. These companies do not have any independent right to use, share, disclose or retain your personal information.

Sharing anonymous information with third parties

Crowdmark may remove personal identifiers, such as your name, from your personal information and Content and maintain the information in non-personalized, aggregate form that may later be combined with other information to generate anonymous, aggregated statistical information.

Disclosing personal information under special circumstances

Crowdmark may disclose information about you to respond to subpoenas, court orders, legal process or governmental regulations, or to establish or exercise Crowdmark's legal rights or to defend against legal claims, or if Crowdmark believes it is necessary to share information in order to investigate, prevent or take action regarding illegal activities, suspected fraud, situations involving potential threats to the physical safety of any person, or as otherwise required by law.

If Crowdmark is to be sold, merged or amalgamated or is to sell or dispose of substantially all of its assets, your personal information may be transferred to a potential purchaser if, and to the extent, necessary for the purposes of deciding whether to proceed with the sale and completing the sale. If such a sale, merger, acquisition or disposal is completed, the purchaser may use and disclose your personal information only to the extent described in this Privacy Policy if the information relates solely to the carrying on of the business or activity or the carrying out of the objects for which the sale, merger or acquisition took place.

Storing your Personal Information

Crowdmark will store and retain your name, e-mail address for as a long as you maintain a Crowdmark account so that Crowdmark can offer you and its other users the services you and they want and expect to receive from Crowdmark.

Crowdmark will only store payment information, if any is collected, for as long as is necessary to process and complete a transaction, whether a one-time transaction on a reoccurring basis.

If Crowdmark has disclosed your personal information to a third party in accordance with this Privacy Policy, Crowdmark has no control over how long and how such third parties store that personal information.

Your Decisions about your Personal Information

Amending and updating your personal information and your consents

By sending Crowdmark an e-mail to privacy@crowdmark.com, mailing Crowdmark at 131 Cowan Ave, Toronto, ON M6K 2N1 you can quickly, at no cost, and at any time:

review the personal information provided to Crowdmark through your account;

review the personal information provided to Crowdmark in connection with your Content and your account;

withdraw your consent for Crowdmark's use and disclosure of your personal information;

update or amend your account information, including your name or e-mail address;

request a list of third parties to which Crowdmark may have provided your personal information;

cancel your Crowdmark account, as described below; or

stop receiving promotional or marketing e-mails from Crowdmark.

When inquiring about or updating your personal information, Crowdmark may ask you to verify your identity before it can act on your request.

Cancelling your account

You can cancel your account at any time by contacting Crowdmark as shown above.

If you cancel your Crowdmark account, all of your personal information will be removed from Crowdmark's databases as quickly as is reasonably possible and will no longer be used or disclosed by Crowdmark. If you cancel your Crowdmark account you will not be able to use any of Crowdmark's services and you cannot recover Content previously provided to Crowdmark through your account.

Referrals and Links

The Website contains links to third-party websites that may offer information of interest. This Privacy Policy does not apply to those websites, and Crowdmark recommends reviewing those websites' privacy policies individually.

Security

Crowdmark understands that storing data, including personal information, in a secure manner is essential. Crowdmark stores personal information and other data using industry standard physical, technical, organization and administrative safeguards to secure data against foreseeable risks, such as theft, unauthorized use, access, disclosure, copying, destruction or modification. While Crowdmark attempts to create a secure and reliable Website for users, the confidentiality of any communication or material transmitted to or from the Website or via e-mail cannot be guaranteed.

Crowdmark limits access to your personal information within Crowdmark to individuals on a need-to-know basis. Crowdmark makes its employees, agents and contractors aware of the importance of protecting your personal information.

Your personal information may be transferred, processed and stored on servers in countries outside of Canada, including the United States, and may therefore be subject to different laws than those applicable in Canada. While Crowdmark undertakes to protect your personal information when it is transferred outside of Canada, the laws of other jurisdictions may require the disclosure of your personal information to governmental authorities under circumstances that are different than those that apply in Canada and are contemplated under this Privacy Policy.

Children's Privacy Protection

Crowdmark understands the importance of protecting the privacy of children in the interactive online world. The Website and the Crowdmark services are not designed for, or intentionally targeted at, children living in the United States who are thirteen (13) years of age or younger and Crowdmark does not intentionally collect or maintain information about anyone living in the United States under the age of thirteen (13). No one under the age of thirteen (13) and living in the United States should submit any personal information or Content to Crowdmark or the Website.

Policy Updates

This Privacy Policy may be revised from time to time as Crowdmark adds new features and services, as laws change, and as industry privacy and security best practices evolve. If Crowdmark makes any change to this Privacy Policy regarding collection, use, disclosure or storage of personal information, Crowdmark will provide advance notice on the Website. Small changes or changes that do not significantly affect individual privacy interests may be made at any time and without prior notice. Crowdmark recommends that you check this webpage periodically in order to review the current Privacy Policy. You can tell if this Privacy Policy has changed by checking the effective date that appears at the bottom of this Policy.

Questions?

If you have any questions, inquiries or complaints about this Privacy Policy or about Crowdmark's handling of your personal information, please contact Crowdmark as follows.

Crowdmark, Inc. br ‘ 131 Cowan Ave br ‘ Toronto, Ontario, M6K 2N1 br ‘ CANADA

Attention: Privacy Officer

E-mail: privacy@crowdmark.com

Privacy Policy last updated: June 13, 2025

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02 | Legal Summary

https://www.crowdmark.com/legal/

Webpage text snapshot | Retrieved 10 October 2026

Legal

Legal Summary

Crowdmark is a web application that helps teachers to teach and students to learn. Users of Crowdmark work together to evaluate, discuss, and respond to exams, essays, lab reports, and other student work (we will refer to all these documents as “exams” for simplicity). When using Crowdmark in the context of a given exam, users take on various roles and may take on one or more of these various roles in different exams:

Instructor – a person in this role creates and administers courses, exams and grading teams. They may also participate in grading.

Facilitator – a person in this role creates and administers exams, coordinates grading teams, and may also participate in grading.

Grader – a person in this role evaluates, assesses, annotates, and scores student work.

Proctor – a person in this role receives electronic copies of blank exams for printing and uploads scanned images of written exams.

Uploader – a person in this role is responsible for scanning and uploading paper exams.

Student – a person in this role writes exams and may be invited to view his or her work, the evaluations of his or her work, and may be allowed to respond to those evaluations and build associated content to help them learn.

Parents – in this role, parents or guardians, when appropriate, can view and respond to evaluations of their child’s work.

Crowdmark collects “personal information” (such as name, email address) from users and shares that information only as is necessary for assessment evaluation and grading team management. Unless Crowdmark seeks and receives explicit approval, Crowdmark will not share personal information about our users except as is necessary for assessment evaluation and grading team management.

Crowdmark collects “content” generated by our users, such as an assessment question uploaded to Crowdmark by a facilitator, the associated responses to that question by students, the scores, comments, annotations and formative assessment feedback to those student responses generated by graders, and the responses to the grader feedback by students and parents. Crowdmark may share this content with others and may study and share it in any way Crowdmark desires provided that Crowdmark ensures that user personal information is not shared.

This is all explained in detail in Crowdmark’s privacy policy and legal terms of service. PLEASE READ CROWDMARK’S TERMS OF SERVICE CAREFULLY BEFORE USING CROWDMARK.

Related Links

Terms of Service

Privacy Policy

Crowdmark Community Terms of Service

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https://www.crowdmark.com/tos/

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Contents

Terms of Service

THESE TERMS OF SERVICE (Terms of Service) ARE A LEGAL AGREEMENT BETWEEN YOU AND CROWDMARK, INC. (Crowdmark). These Terms of Service govern your access to and use of certain of Crowdmark's products, software, services, and web site, including crowdmark.com, (collectively Services), and any and all information (including forms of exams, tests, essays, lab reports, and other student work ("assessments"), partially or fully competed assessments, and grades, marks and scores on or in connection with partially or fully completed assessments), text, graphics, photos or other materials uploaded, posted, or submitted to, downloaded from, or appearing on the Services (collectively Content).

BY SELECTING "I AGREE", YOU ARE DEEMED TO HAVE READ AND ARE INDICATING YOUR ACCEPTANCE OF, AND YOU AGREE BE BOUND BY THESE TERMS OF SERVICE. If you do not agree to be bound by these Terms of Service, you are not allowed to use the Services. Wherever used in these Terms of Service, "you", "your" or similar terms mean the person or legal entity utilizing or accessing the Services.

Your access and use of the Services and your handling of Content must be in accordance with these Terms of Service. If you violate these Terms of Service, you are no longer permitted to use the Services and Crowdmark may (but has no obligation to) terminate these Terms of Service and/or your ability to access or use the Services at any time.

1. Changes to the Terms of Service

Crowdmark may change these Terms of Service from time to time without notice to you. Your continued use of the Services after any such change shall constitute your acceptance of such change. You are responsible for regularly reviewing the most current version of the Terms of Service which are currently available at: crowdmark.com/legal/.

2. Ownership and Licences

Crowdmark hereby grants to you, subject to the terms and conditions of these Terms of Service, a revocable, worldwide, limited, non-exclusive, personal, non-transferable and non-assignable license to use the Services (the Crowdmark Licence) to access and use Crowdmark's Services on your computer system and remotely through the Internet or other communications network agreed to by you and Crowdmark, subject to any limitations, restrictions or requirements specified herein, solely for your own purposes in connection with: (i) in the case of educators, professors and teachers, submitting assessments for completion by, or completed by, students, and grading by graders, markers and facilitators; (ii) in the case of students, submitting partially or fully completed assessments for grading, scoring, marking, or viewing; (iii) in the case of graders, markers and facilitators, grading, scoring, viewing and marking completed assessments; and (iv) in the case of proctors, receiving, reviewing and collecting assessments.

Crowdmark shall make the Services available to you through the Internet and the Services will be maintained on computer servers and equipment in the possession or control of Crowdmark and made accessible to you through the Internet through a secure password protected site(s) hosted by Crowdmark or a third party. You acknowledge that Crowdmark uses third party service providers and hosting partners to provide the necessary hardware, software, networking, storage, and related technology required to run the Services, including third parties to permit the uploading and submission of Content to the Services and to process payments, if any.

You retain your ownership in and to Content you submit, post or upload to the Services, and your use of the Services does not transfer any ownership from you to Crowdmark. By making Content available to Crowdmark or to others through the Services, you hereby grant Crowdmark and its licensors and third party service providers, without any additional consideration, a worldwide, irrevocable, perpetual, transferable, non-exclusive, royalty-free, fully paid up license (with a right to sublicense) (the Content Licence) to use, copy, reproduce, process, adapt, modify, publish, transmit, display, incorporate, reformat, translate, excerpt, and distribute Content provided through your account, or any

part thereof, including in personalized form and in aggregated, anonymous form, through any or all media or distribution methods (whether now known or hereafter developed).

You hereby waive, in favour of Crowdmark, your moral rights under Canada's Copyright Act or any successor legislation or similar law under the laws of Canada or the laws of other countries, that you, as author, have or may in your Content.

You acknowledge and agree that as between you and Crowdmark, Crowdmark and its licensors have and retain all right, title and interest (including copyright, trade-mark, patent, trade secret and all other intellectual property rights) in and to Crowdmark's Content and the Services, including any code underlying the Services, except as provided to you through the Crowdmark Licence. You acquire no rights whatsoever in or to all or any part of the Services or Crowdmark's Content except for the limited use rights granted by these Terms of Service. All rights not expressly granted to you in these Terms of Service are reserved to Crowdmark and its licensors.

You may choose to submit comments, corrections, recommendations, suggestions or other ideas to Crowdmark about the Services, including about how to improve the Services (Feedback). By providing Feedback to Crowdmark you agree that: your provision of such Feedback is free of charge, unsolicited and without restriction; Crowdmark can use or disclose to any third party the Feedback without any additional compensation to you; and Crowdmark owns all rights and interest in such Feedback. Crowdmark does not waive any rights to use any Feedback or similar Feedback developed or obtained by Crowdmark.

Certain words, phrases, names, designs, or logos used in the Services may constitute trademarks, service marks or trade names of Crowdmark or other entities. The display of any such marks or names does not imply that a license has been granted to you or any third party by Crowdmark or other entities. Any unauthorized use or display of the trademarks or trade names of Crowdmark, its affiliates, related companies and their licensors is strictly prohibited.

3. Privacy

Crowdmark's privacy policy, currently available at: crowdmark.com/privacy/ (the Privacy Policy) is hereby incorporated into, and forms part of, these Terms of Service. By accessing and using the Services you are consenting to (or promising that you have obtained appropriate consent for) Crowdmark's collection and use of your personal information in accordance with Crowdmark's Privacy Policy.

4. Use and Your Account

You must provide your full name, a valid email address, and any other information requested (Registration Information) in order to register with Crowdmark and create an account to access and use the Services. You may not maintain more than one account for the Services. Each account login may only be used by one person – a single login shared by multiple people is not permitted. You hereby consent to Crowdmark's collection and use of your Registration Information, and to Crowdmark's use and disclosure of Registration Information to third parties (including Crowdmark's third party service providers and payment processors, if any), for the purposes of administering your account and the use of the Services through your account in accordance with the Privacy Policy.

When you complete the account creation and registration process, you will create a login and password for your account. You are responsible for maintaining the security of your password and account. You are solely responsible and liable for your account and for any use of the Services and any Content accessed, or made available to others, through your account (even if such Content is accessed, or made available, by others). Crowdmark is not, and will not, be responsible for any loss or damages resulting from your failure to comply with this obligation. Crowdmark encourages you to use a strong password (passwords that use a combination of upper and lower case letters, numbers and symbols) for your account. You agree to immediately notify Crowdmark if you become aware of any unauthorized use of your account or your account login or password.

You hereby represent, warrant and confirm that you can form a binding contract with Crowdmark, that your use of the Services is in full compliance with the law of the jurisdiction(s) to which you are subject, and that you are not prohibited from using the Services under Canadian law or any other applicable laws.

5. Restrictions on Use

You must not use the Services: (i) to engage in any illegal or unauthorized purpose, including in any way that violates laws applicable in Canada or other laws applicable to you, or in any manner that is inconsistent, or could be inconsistent, with applicable local, provincial/state, and national laws and regulations; (ii) in an way that violates or infringes the copyrights, rights of privacy or publicity, or any other rights of any person; (iii) to impersonate or misrepresent your affiliation with any person or entity; (iv) to engage in verbal, physical, written or other abuse (including threats of abuse or retribution) of any Crowdmark customer, employee, member, or officer or any user of the Services; or (v) to upload, post or submit Content, or otherwise make available to others using the Services: (A) any material that is libelous, defamatory, pornographic, obscene, offensive harassing or otherwise actionable or objectionable material in Crowdmark's sole opinion; (B) any unsolicited message or unauthorized advertising or promotional material or any junk mail, spam or chain letters or messages through e-mail, or any short message service or multimedia message service; (C) any worms, viruses, Trojan horses, scripts, spiders, bots or similar means to harvest or collect information, or any computer code or files of a destructive, disabling or interfering nature (collectively, Viruses), or any Content that contains any of the foregoing; or (D) any material that is in a way that is detrimental to the operation of the Services or that could damage, disable or overburden the Services, or that is detrimental to the access or use of the Services by anyone else, which restriction applies to any use that interferes or attempts to interfere with the normal operations of the Services, including by hacking, deleting, augmenting or altering the Services or any Content.

You must not, without Crowdmark's prior written permission (including the permissions granted by these Terms of Service): (i) access or search, or attempt to access or search, the Services by any means (automated or otherwise) except through Crowdmark's available interfaces and your account; (ii) copy, distribute (including by framing any of the Services on any web site), modify, enhance, translate, reproduce, alter, tamper with, repair, sell, resell, sublicense, rent, lease, or otherwise attempt to exploit the Services; (iii) decompile, disassemble, reverse engineer, or otherwise attempt to discover the code (except to the extent that this restriction is expressly prohibited by law) underlying the Services; (iv) make derivative works of the Services; or (v) modify another website so as to falsely imply that it is associated with the Services, Crowdmark or any other Crowdmark products or services.

6. Content

You acknowledge that by using the Services you may be exposed to Content that might be unlawful, or that you might consider to be offensive, harmful, inaccurate, or otherwise inappropriate or deceptive. Crowdmark is not responsible for, and does not pre-screen, Content and Crowdmark is not responsible for the Content accessed or made available to you through the Services.

You understand that the technical processing and transmission of the Services, including the processing and transmission of Content uploaded, posted, or submitted to the Services from your account, may be transferred and unencrypted and may involve: (i) transmissions over various networks both within and outside of Canada; and (ii) changes to such Content to conform and adapt to technical requirements of connecting networks or devices.

Crowdmark has the right (but not the obligation) in its sole discretion to refuse or remove any Content. Crowdmark may (but has no obligation to) remove Content, and terminate accounts for any reason whatsoever, including accounts containing Content that Crowdmark determines, in its sole discretion, to be unlawful, offensive, harmful, inaccurate, or otherwise inappropriate or deceptive (including Content that Crowdmark determines in its sole discretion to: (i) be libelous, defamatory, pornographic, obscene, or otherwise objectionable; and (ii) violate these Terms of Service or any third party's intellectual property rights).

You represent that: (i) you own all right, title and interest, including copyright, in and to any Content uploaded, posted or submitted to the Services through your account; or (ii) you have permission to upload, post, or submit any Content to the Services uploaded, posted or submitted to the Services through your account; or (iii) you have rights in the Content uploaded, posted or submitted to the Services necessary to grant the rights contemplated in these Terms of Service.

7. Payments

Your use of certain of the Services may be subject to Crowdmark's the current subscription charges (Fees) applicable to some of the Services you may select from time to time. Any Services subject to Fees will be clearly marked as such and may be subject to special terms and conditions in addition to these Terms of Service. All Fees are exclusive of taxes, levies, withholdings or duties imposed by taxing authorities, and you shall be responsible for payment of all such taxes, levies, withholdings or duties in addition to the Fees.

If you subscribe for Services that are subject to Fees, you must pay all Fees plus all applicable taxes owed by you to Crowdmark, in the currency agreed to by you and Crowdmark at the time you subscribe for those Services that are subject to Fees, using a valid credit card acceptable to Crowdmark in its sole discretion prior to Crowdmark making those Services available to you. In the event of non-payment of any amount owed by you to Crowdmark, Crowdmark reserves the right to terminate or suspend the Services at any time.

If you subscribe for Services that are subject to Fees, you shall pay all Fees owed by you to Crowdmark, if any, in advance of period in which Services are to be provided by Crowdmark or on an itemized basis. Fees and are non-refundable, in whole or in part, except where required by applicable laws.

You hereby consent to be billed for Fees, if any are due to Crowdmark, on a recurring basis in compliance with applicable legal requirements and applicable card network payment rules. Credit card payments are processed for Crowdmark by a third party payment processor (the Processor) and, as such, your personal, financial, credit card, or transaction information may be transferred, processed and stored by the Processor outside of Canada and may be subject to disclosure as required by applicable law in accordance with the Privacy Policy. You hereby authorize Crowdmark and/or the Processor to share information with law enforcement about you, your transactions, or your use of the Services if Crowdmark and/or the Processor reasonably suspects your account has been, or may be, used for an unauthorized, illegal, or criminal purpose. Crowdmark reserves the right to not authorize or settle any Fees transaction you submit that Crowdmark believes, in its sole discretion, is in violation of these Terms of Service or any agreement between Crowdmark and the Processor, or exposes you, Crowdmark, other users of the Services, or other users of services provided by the Processor to harm.

If you state that your country is outside of Canada, you agree that you are non-resident of Canada, and not registered for GST/HST purposes in Canada.

8. Changes to the Services and Fees

Crowdmark may change the Services at any time and from time to time without giving you notice. Any changes to the Services, including releases of new features, tools or resources, shall be subject to these Terms of Service. Crowdmark may also stop (temporarily or permanently) providing the Services (or any part of the Services) to you or to anyone else without notice.

Fees for certain of the Services are subject to change upon 30 days notice from Crowdmark to you, which notice may be provided to you by Crowdmark at the e-mail address you provided when you registered for your Crowdmark account.

Crowdmark is not, and will not, be liable to you or to any third party for any change to the Fees or Services, including suspension or discontinuance of the Services.

9. Cancellation

If you choose to cancel your Crowdmark account you are solely responsible for doing in accordance with Crowdmark's then current cancellation procedure (the Cancellation Procedure) set out on Crowdmark's website at crowdmark.com. If you follow the Cancellation Procedure, Crowdmark will, subject to any licences granted hereunder, cancel your account immediately and Crowdmark will use reasonable efforts to delete all Content uploaded, posted or submitted to the Services from your account promptly after cancellation. After you have cancelled your account, you cannot recover Content previously uploaded, posted or submitted to the Services from your account. Crowdmark is not responsible for the loss of any Content due to your cancellation of your account.

10. Termination and Suspension

Crowdmark, in its sole discretion, has the right to terminate these Terms of Service, or to suspend, terminate or restrict your access to any of the Services, or any other Crowdmark service, for any reason and at any time without notice. If Crowdmark decides to terminate your access to any of the Services, Crowdmark may deactivate, suspend or delete your account or your access to your account, and may delete all Content uploaded, posted, or submitted to the Services through your account. For greater certainty, if you engage in any behaviour Crowdmark considers, in its sole discretion, to be offensive or in violation of thee Terms of Service, Crowdmark may, in its sole discretion, terminate your access to the Services and your account without notice. Crowdmark reserves the right to refuse to provide the Services to you for any reason at any time.

11. Notification of Copyright Infringement

If you are a copyright owner, authorized to act on behalf of one, or authorized to act under any exclusive right under copyright, please report any Content on the Services that allegedly infringes your copyright by sending to Crowdmark at legal@crowdmark.com a notice with the following information: (i) physical or electronic signature of a person authorized to act on behalf of the owner of an exclusive copyright that is allegedly infringed; (ii) identification of the copyrighted work claimed to have been infringed, or, if multiple copyrighted works on the Services are covered by a single notification, a representative list of such works on the Services; (iii) identification of the Content that is claimed to be infringing or to be the subject of infringing activity and that is to be removed or access to which is to be disabled, and information reasonably sufficient to permit Crowdmark to locate the material; (iv) information reasonably sufficient to permit Crowdmark to contact you, such as an address, telephone number, and, if available, an electronic mail address at which you may be contacted; (v) a statement that you have a good faith belief that the use of the Content in the manner complained of is not authorized by the copyright owner, its agent or the law; (vi) a statement that the information in the notification is accurate, and under penalty of perjury, that you are authorized to act on behalf of the owner of the exclusive right that is allegedly infringed; and (vii) URLs identifying the allegedly infringing material along with any other information that might assist in the investigation of your claim. Upon receipt of this information, Crowdmark will respond expeditiously and follow its notice and Content take down procedure, including having the disputed material removed from the Services and notifying the user who uploaded, posted or submitted the allegedly infringing Content. If you materially misrepresent that any material infringes your copyright, you may be liable for damages, including court costs and legal fees.

12. Disclaimers

THE SERVICES ARE PROVIDED TO YOU “AS IS” AND ON AN “AS AVAILABLE” BASIS, WITH ALL FAULTS AND WITHOUT ANY WARRANTIES, REPRESENTATIONS OR CONDITIONS OF ANY KIND, INCLUDING WITH RESPECT TO AVAILABILITY, COMPATIBILITY, VIRUSES, DISABLING DEVICES OR OTHER CODE THAT MANIFESTS DESTRUCTIVE PROPERTIES.

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, CROWDMARK MAKES NO, AND DISCLAIMS ANY AND ALL, WARRANTIES, REPRESENTATIONS AND CONDITIONS OF ANY KIND WITH RESPECT TO QUALITY, ACCURACY, USEFULNESS, SUITABILITY, SECURITY, RELIABILITY, COMPLETENESS, QUIET ENJOYMENT, CURRENCY, OR TIMELINESS OF THE SERVICES OR ANY CONTENT, WHETHER EXPRESS, IMPLIED OR COLLATERAL, INCLUDING, WITHOUT LIMITATION, THE IMPLIED WARRANTIES AND CONDITIONS OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE AND NON-INFRINGEMENT OR THAT THE SERVICES ARE OR WILL BE SECURE, COMPLETE OR FREE OF ERRORS, VIRUSES, BUGS, PROBLEMS OR OTHER LIMITATIONS OR WILL OPERATE WITHOUT INTERRUPTION.

13. Limitation of Liability

YOUR USE OF THE SERVICES IS ENTIRELY AT YOUR OWN RISK. YOU ACKNOWLEDGE THAT THE INTERNET IS NOT A SECURE MEDIUM AND PRIVACY AND CONFIDENTIALITY CANNOT BE GUARANTEED.

CROWDMARK AND ITS AFFILIATES AND LICENSORS ARE NOT, AND WILL NOT BE, RESPONSIBLE FOR ANY DAMAGES YOU OR A THIRD PARTY MAY SUFFER AS A RESULT OF YOUR USE OF THE SERVICES (INCLUDING WITHOUT LIMITATION, ANY USE OF CONTENT OR OTHER MATERIALS OR INFORMATION YOU ACCESS FROM OR PROVIDE TO CROWDMARK, DIRECTLY OR INDIRECTLY, THROUGH THE SERVICES) OR FOR ANY INCOMPLETENESS, ERRORS, SECURITY, VIRUSES, BUGS, PROBLEMS, OMISSIONS, INACCURACIES OR OTHER LIMITATIONS IN THE SERVICES OR ANY CONTENT, OR INTERRUPTIONS IN THE SERVICES.

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, CROWDMARK AND ITS AFFILIATES AND LICENSORS ARE NOT LIABLE, WHETHER BASED ON STATUE, WARRANTY, CONTRACT, TORT, LAW, EQUITY, (INCLUDING BUT NOT LIMITED TO NEGLIGENCE, GROSS NEGLIGENCE OR WILFUL MISCONDUCT), PRODUCT LIABILITY, STRICT LIABILITY, STATUTORY LIABILITY, BREACH OF A FUNDAMENTAL TERM, FUNDAMENTAL BREACH, OR ANY OTHER LEGAL THEORY, FOR ANY LOSS OR DAMAGES OF ANY KIND, INCLUDING, WITHOUT LIMITATION ANY (I) DIRECT, INDIRECT, SPECIAL, CONSEQUENTIAL, EXEMPLARY OR PUNITIVE LOSS OR DAMAGE, (II) LOST PROFITS OR SAVINGS, (III) BUSINESS INTERRUPTION, (IV) LOSS OF PROGRAMS OR DATA (INCLUDING ANY CONTENT), (V) LOST REVENUE OR FAILURE TO REALIZE EXPECTED SAVINGS, (VI) LOSS OF USE, (VII) PERSONAL INJURY, (VIII) FINES, FEES, PENALTIES, OR (VI) ANY OTHER LOSSES OR DAMAGES

WHETHER OR NOT CROWDMARK IS ADVISED OF THE POSSIBILITY OF SUCH DAMAGES, RESULTING FROM YOUR USE OF, OR THE INABILITY TO MAKE USE OF, THE SERVICES.

14. Acknowledgment

YOU EXPRESSLY ACKNOWLEDGE AND CONFIRM THAT THE CONTENT LICENCE AND THE LIMITATIONS AND EXCLUSIONS CONTAINED IN THESE TERMS OF SERVICE ARE FAIR AND REASONABLE IN THE CIRCUMSTANCES, AND THAT CROWDMARK WOULD NOT HAVE ENTERED INTO THESE TERMS OF SERVICE AND LICENSED THE SERVICES BUT FOR YOUR PROVISION OF THE CONTENT LICENCE AND YOUR AGREEMENT TO SUCH LIMITATIONS AND EXCLUSIONS.

15. Indemnification

You hereby agree to indemnify Crowdmark or its licensors, subsidiaries, affiliates, and related companies, and each of their respective officers, directors, employees, shareholders, agents, representatives, business partners, information providers and licensors and their respective successors and assigns (together Crowdmark Entities) harmless from and against all losses, expenses, damages, liabilities, expenses and costs, including reasonable legal fees, suffered by any of the Crowdmark Entities, directly or indirectly, resulting from: (a) your use of the Services; (b) the uploading, posting or submission of any Content to the Services through your account; and (c) your violation of these Terms of Service.

16. General

The provisions of these Terms of Service regarding “Restrictions on Use”, “Payment Matters”, “Cancellation”, “Termination and Suspension”, “Ownership and Licences”, “Disclaimers”, “Limitation of Liability”, “Indemnification” and “General” and any provisions which by their nature survive, shall survive the termination of these Terms of Service.

The failure of Crowdmark to exercise or enforce any right or provision of these Terms of Service shall not constitute a waiver of such right or provision, and no waiver of any right or provision of these Terms of Service shall be deemed a further or continuing waiver of such right or provision.

These Terms of Service constitute the entire agreement between you and Crowdmark and govern your use of the Services, superseding any prior agreements between you and Crowdmark (including, but not limited to, any prior versions of the Terms of Service). If you are a corporation, organization, partnership or other non-individual entity, you shall cause your employees, agents, contractors, director and officers to comply with these Terms of Service and shall be responsible at all times for all such employees, agents, contractors, directors and officers.

If any provision of these Terms of Service is determined by a court of competent jurisdiction to be void, invalid or otherwise unenforceable by a court of competent jurisdiction, that provision shall be enforced to the maximum extent permissible so as to effect the intent of these Terms of Service and such determination shall not affect the remaining provisions contained herein.

You may not assign these Terms of Service or any of your rights or obligations under these Terms of Service to a third party without the prior written consent of Crowdmark. Crowdmark may assign the Terms of Service or its rights or obligations under these Terms of Service to any party at any time without notice to you. Subject to the foregoing, these Terms of Service shall enure to the benefit of and be binding upon you and Crowdmark and your/its respective successors (including any successor by reason of amalgamation) and assigns.

These Terms of Service are governed, interpreted and construed in accordance with the laws of the Province of Ontario and the applicable laws of Canada, without giving effect to any principles of conflicts of laws contained therein, and you hereby consent and submit to the exclusive jurisdiction of the Courts of Ontario. These laws apply to your access to, or use of, the Services, notwithstanding your domicile, residency or physical location. The Services are intended for use only in jurisdictions where they may lawfully be offered for use. You and Crowdmark specifically disclaim the UN Convention on Contracts for the International Sale of Goods.

It is the express wish of the parties to these Terms of Service that these Terms of Service and all related documents be drawn up in English. C’est la volonté expresse des parties que la présente convention ainsi que les documents qui s’y rattachent soient rédigés en anglais.

If you have any questions or concerns about these Terms of Service, the practices of Crowdmark or your dealings with Crowdmark, you may contact a representative of Crowdmark by e-mail to legal@crowdmark.com or by regular mail to:

Crowdmark, Inc.

131 Cowan Ave

Toronto, Ontario, M6K 2N1

CANADA

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